

Ajay Kumar Pandey v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 28 August 2024 · 2024:AHC:138060-DB · Writ-C No. 27099 of 2024 · **Writ disposed; Clause 6.5 objections to be decided; no coercive action meantime.**

HEADNOTE

A consumer's writ seeking a direction to decide representations against electricity bills was disposed of on the licensee's statement that the representations would be treated as objections under Clause 6.5 of the Electricity Supply Code. The third respondent was directed to decide the objections dated 20.09.2023, 22.09.2023 and 16.10.2023 by a speaking order within four weeks, and not to take coercive action on the impugned bills until then.

FACTUAL SUMMARY

Ajay Kumar Pandey petitioned the Allahabad High Court disputing the correctness of electricity bills issued to him from time to time. He sought a direction that the department decide his representations dated 20.09.2023, 22.09.2023 and 16.10.2023. Counsel for the electricity department stated that those representations would be decided treating them as objections under Clause 6.5 of the Electricity Supply Code, 2006.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection under clause 6.5

HOLDING

On the licensee's statement that the petitioner's representations would be treated as objections under Clause 6.5, the writ was disposed of directing the third respondent to decide the objections dated 20.09.2023, 22.09.2023 and 16.10.2023 by a speaking order within four weeks, and not to take coercive action on the impugned bills until that decision. ¶ 2-3

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A consumer's writ seeking a direction to decide representations against electricity bills was disposed of on the licensee's statement that the representations would be treated as objections under Clause 6.5 of the Electricity Supply Code.. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE IMPUGNED ELECTRICITY BILLS

Merits of the billing dispute left to the Clause 6.5 process. ¶ 1-3